

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARIE CAREW D/B/A/ HOLIDAY SHIPPING, *Complainant*

v.

MAERSK LINE A/S & JOHN DOES, *Respondents*.

DOCKET NO. 20-17

Served: June 1, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING WITHOUT PREJUDICE COUNSEL’S MOTION TO WITHDRAW

On May 27, 2021, counsel for Complainant filed a motion seeking to withdraw as counsel. The motion states that counsel met with Complainant “to notify her of his intention to withdraw from further assistance [sic] in her case, and to advise her of her continued obligation should the Commission grant [sic] the withdrawal.” Motion at 1. Counsel does not indicate the reason for his request to withdraw and does not provide contact information for Complainant.

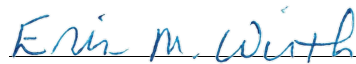
Commission Rule 23(e) regarding withdrawal of representative states:

If an attorney wishes to withdraw from representing a party, and written consent is not obtained, or if the party is not otherwise represented, the withdrawing attorney shall file an appropriate motion seeking permission to withdraw and provide appropriate reasons for making the motion. Such motion will be decided in consideration of the factors and standards set forth in Rule 1.16 of the American Bar Association’s Model Rules of Professional Conduct and by the courts.

46 C.F.R. § 502.23(e).

The motion does not meet the requirement of Rule 23 to provide appropriate reasons for making the motion. In addition, counsel must provide the mailing address, phone number, and email address where Complainant may be reached prior to being allowed to withdraw. The denial is without prejudice and counsel may renew his request by filing an amended motion with the required information.

Accordingly, it is hereby **ORDERED** that counsel for Complainant’s motion to withdraw is hereby **DENIED WITHOUT PREJUDICE**.



Erin M. Wirth

Chief Administrative Law Judge